

HOUSE No. 1776

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ban phishing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/28/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/24/2025</i>

HOUSE No. 1776

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1776) of Bradley H. Jones, Jr., and others relative to the penalty for electronic mail message, web page, or other online service phishing. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1573 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ban phishing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 266 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding after Section 37E the following section:

3 SECTION 37F.

4 (a)For the purposes of this section, the following word shall have the following meaning:-

5 “Electronic mail message,” an electronic message or an executable program or computer
6 file that contains an image of a message transmitted between 2 or more computers or electronic
7 terminals and includes electronic messages that are transmitted within or between computer
8 networks from which an electronic delivery receipt is obtained.

9 (b)Whoever, with intent to defraud, poses as a legitimate business using an electronic
10 mail message, web page, or other online service, without the authorization or approval of said
11 business, in an attempt to procure payment or personal identifying information, shall be punished
12 by a fine of not more than \$5,000 or imprisonment in a house of correction for not more than two
13 and one-half years, or by both such fine and imprisonment.